

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Thursday, September 10, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, September 10, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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19CV-03971	S.C. Anderson, Inc. vs Golden State Construction and Framing, Inc., et al.
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Review of Case Status re: Settlement

Appearance required. Appear to address status of conditional settlement for which notice was filed June 1, 2026. There have been various requests for dismissal filed since this date. Appear to address whether further dismissals are still pending.

22CV-03431	Kendall And Davis, LLC, et al. vs Le-Nguyen Dental Corporation, et al.
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Motion to Withdraw and Amend Deemed Admissions; to Vacate Orders Compelling Discovery Responses and all Monetary Sanctions; and to Reset Discovery Deadlines

The motion to withdraw and amend deemed admissions, to vacate orders compelling discovery responses and monetary sanctions, and reset discovery deadlines is DENIED.

The Court finds that the failure to timely serve responses to requests for admission and the other discovery at issue was not a result of mistake, inadvertence, or excusable neglect. The record and evidence support the finding that there was sufficient time for Relators to respond, which they failed to do without adequate explanation. Relators knew the discovery had been served, met and conferred with Defendant's counsel regarding extensions to that discovery, obtained extensions to respond, failed to provide timely responses, and further failed to object to the method of service or request a stay of discovery to allow Relators to obtain new counsel.

As an initial matter, objections to the method of service are deemed waived. Relators had 30 days to object based on improper service or to file a motion to quash. By not objecting, any alleged defect was waived.

Relators' reply asserts that Relators have responded to discovery. This assertion is unpersuasive and not supported by the reply itself or by way of attorney declaration with attached evidence. For example, the reply asserts, "Relators have served responses to the Requests for Admission, Requests for Production, and Special Interrogatories concurrently with this Reply. [footnote 1]" (Reply 2:17-18), but then in the accompanying footnote state that "verifications are expected to be served within 24 hours of this writing." (Reply, p. 2, footnote 1.) Unverified responses are tantamount to no responses at all.

As to the assertion that Relators are not seeking to undo the consequences of delay wholesale, Relators' initial motion specifically requests this Court vacate all prior orders and reset discovery. (Motion, 29:8-30:14.) It is only upon reply that Relators now appear to change the relief requested.

The reply also argues that "Relators do not contend that self-representation excused them from complying with California discovery law." (Reply, 20-21.) However, that is precisely what Relators argue in their motion: "During the entire period in which the discovery was pending, Relators were without California counsel and were self-represented. While Relator Kendall is identified in Defendant's papers as a licensed attorney, he is not admitted to the California bar, and neither Relator had experience with California's specific discovery statutes, including the automatic-admission consequences under Code of Civil Procedure section 2033.280. Relators' pro se status and lack of California-specific legal knowledge constitute the type of "mistake" and-"inadvertence" contemplated by the statute." (Motion, 12:17-23.)

The argument is incorrect and unpersuasive, with zero authority to support it. Under California law, pro per litigants must follow the same rules of court, abide by and comply with the same statutes, including the Code of Civil Procedure and Evidence Code, and are just as precluded from asserting ignorance of the law as licensed attorneys. (See *Doran v. Dreyer* (1956) 143 Cal.App.2d 289, 290 (holding a litigant may represent herself but is "restricted to the same rules of evidence and procedure" as licensed attorneys, lest "ignorance [be] unjustly rewarded"); see also, *Stover v. Bruntz* (2017) 12 Cal.App.5th 19, 31 (appellant "was not entitled to disregard the rules for timely responding to discovery and she was not immune from the consequences of a failure to do so").)

23CV-04088

Sharee Maravilla-Sok, et al. vs Kone, INC., et al.

Status Conference

CONTINUED to November 12, 2026, at 8:15 a.m. in Courtroom 8. This matter remains stayed pending the outcome of the pending writ petition.

Motion Plaintiff's Motion for Leave to File Second Amended Complaint./ trailing Status conference

CONTINUED to November 12, 2026, at 8:15 a.m. in Courtroom 8. This matter remains stayed pending the outcome of the pending writ petition.

Motion Defendant's Motion for Protective Order re: Plaintiff's : Second Elevator Inspection/ trailing Status conference

CONTINUED to November 12, 2026, at 8:15 a.m. in Courtroom 8. This matter remains stayed pending the outcome of the pending writ petition.

23CV-04736

Maria Rodriguez Barajas vs Dollar General Corporation

Motion for Relief from Admitted Admissions

The motion for relief from deemed admissions is GRANTED.

There exists a legitimate question as to whether the discovery at issue was actually served on March 13, 2026. Defendant's assertion that discovery was never received is supported by the Declaration of Bradley J. Seliga and exhibits attached thereto. Further, there is a legitimate question as to whether the handling attorney, Bradley J. Seliga, was aware of the motion to compel and motion to have admissions deemed admitted. This is also supported by the Declaration of Bradley J. Seliga and exhibits attached thereto.

Failure to respond to discovery that was never served, or to be put on notice of the discovery motions so that they could be responded to would be mistake, inadvertence, or excusable neglect. In addition, due to the mistake, inadvertence, or excusable neglect, the Court finds that objections to discovery are not waived.

The Court will sign the order lodged on August 12, 2026.

24CV-05064

Heriberto Martinez vs Angel Anaya, et al.

Order to Show Cause Re: Dismissal

Appearance required. Notice of the order to show cause hearing was sent by the clerk's office to the pro per plaintiff on July 7, 2026.

24CV-06601

Creditors Bureau USA vs Rai Manpreet

Motion for Order to Amend & Correct Name of Judgment Debtor

The motion to amend and correct the name of the judgment debtor is GRANTED.

The Court finds the request is not to add or substitute a new or different party and only seeks to correct the order of the names in the pleadings.

Plaintiff is ordered to submit a proposed order for signature within five (5) days.

25CV-01878

William Mooneyham., et al. vs Steve Mooneyham., et al.

Motion to Strike the Defendant's Answer

CONTINUED ON THE COURT'S OWN MOTION to September 23, 2026, at 8:15 a.m. in Courtroom 8.

26CV-04157

Petition of: Navjeet Gill

Order to Show Cause Re: Name Change

Appearance required. Appear to address status of publication of the petition for name change.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Thursday, September 10, 2026
10:00 a.m.

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Case No.	Title / Description
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C10747823	Unifund CCR Partners vs. Pete Rubio
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Order of Examination – Pete Rubio

Appearance required. The Court notes that no proof of service of the order of examination has been filed.

24CV-03287	Crown Asset Management, LLC vs. Alfonso Marquez
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Motion to Vacate Default Judgment

The unopposed motion by plaintiff Crown Asset Management, LLC to vacate the default judgment entered on June 2, 2025, against defendant Alfonso Marquez and to dismiss the action without prejudice is GRANTED pursuant to Code of Civil Procedure section 473 and in the interests of justice. Plaintiff asserts that the underlying account may have been the result of a fraudulent action against Defendant.

The Court will sign the proposed order submitted with the moving papers.

26CV-00199

Midland Credit Management, Inc. vs. Dashawn Chambers

Status Hearing – Status of Arbitration

Appearance requested to inform the Court of the status of arbitration and completion of arbitration proceedings.

26CV-04366

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Motion to Quash Service of Summons

DROPPED from calendar due to lack of notice to the opposing party. The moving defendants have not filed proof of service of the notice of motion and motion. The Court also notes that no proof of service of summons has been filed by Plaintiff.

Demurrer to Complaint

Appearance required. An opposition and reply to an opposition may be made orally at the time of the hearing. (Code Civ. Proc., § 1170, subd. (c).)

26CV-04193

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Ex Parte Application Calendar
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Thursday, September 10, 2026
1:15 p.m.

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Case No.	Title / Description
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26CV-04323	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Ex Parte Application for Order Staying Execution of Judgment and Shortening Time on Motion to Vacate Default Judgment

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Restraining Orders
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Thursday, September 10, 2026
11:00 a.m.

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Case No.	Title / Description
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26CV-00140	Lilliana Perry vs Lacey Recinos
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Order to Show Cause Re: Restraining Order Request to Modify

Appearance required.

26CV-04428	Mauricia Baltazar vs. James Martinez
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Order to Show Cause Re: Restraining Order

Appearance required

26CV-04572	Conner Pires vs. Manuel Pereira
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Order to Show Cause Re: Restraining Order

Appearance required
